

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Hector Vargas,: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs

: SUMMONS

-against-

:

City of New York, New York City Police Department,
Police Officer Brandon Agosto, Shield 25108 of PSA 2,
Detective Daniel Rivera, Shield 7978 of NBBX,
Undercover Police Officer John Doe and New York City
Police Officers John Doe,

:

:

:

Plaintiff's residence is:
2505 Aqueduct Avenue
Bronx, NY 10468

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: May 9, 2023
New York, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10021
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Brandon Agosto, Shield 25108 of PSA 2,

Detective Daniel Rivera, Shield 7978 of NBBX

Undercover Police Officer John Doe

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

Hector Vargas,

:

Plaintiffs

:

VERIFIED COMPLAINT

-against-

:

City of New York, New York City Police Department,
Police Officer Brandon Agosto, Shield 25108 of PSA 2,
Detective Daniel Rivera, Shield 7978 of NBBX,
Undercover Police Officer John Doe and New York City
Police Officers John Doe,

:

:

:

Defendants

:

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,

alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Hector Vargas (hereinafter referred to as "VARGAS") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Brandon Agosto, Shield 25108 of PSA 2 (hereinafter referred to as "AGOSTO") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Detective Daniel Rivera, Shield 7978 of NBBX (hereinafter referred to as "RIVERA") was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Undercover Police Officer John Doe (hereinafter referred to as "UC DOE") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, the New York City Police Officers John Doe (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
8. On or about August 15, 2022 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
9. That on or about April 20, 2023 the Honorable Mitchell Danziger deemed the Notice of Claim timely as to all causes of action listed herein.
10. That on or about February 1, 2023 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs’ claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
11. That on or about February 11, 2022 at approximately 1:00 PM in the vicinity of Fordham Road and Garand Avenue, Bronx, NY Plaintiff was on his way to McDonalds when AGOSTO, RIVERA and DOES stopped, handcuffed and arrested him.
12. That at no time had Plaintiff engaged in any illegal or unlawful conduct.

13. That at no time did Plaintiff sell or act in concert to sell a narcotic substance to UC DOE or anyone else.

14. That at no time did Plaintiff possess or exercise custody and control over a narcotic substance.

15. That at the prior to and at the time of arrest, AGOSTO, RIVERA, UC DOE and DOES knew that Plaintiff did not engage in any illegal activity.

16. That after Plaintiff was arrested, he was transferred to the 52 precinct.

17. That while Plaintiff was held in the 52 precinct he was confined to a cell with numerous other male prisoners.

18. That while Plaintiff was held in the 52 precinct he was searched and that nothing illegal was found.

19. That after being held in the 52 precinct for several hours, he was transported to Bronx County Central Booking, located at 265 East 161 Street, Bronx, NY.

20. That while Plaintiff was held in Bronx County Central Booking, he was confined to a cell with numerous other male prisoners.

21. That on or about February 12, 2022, Plaintiff was arraigned on docket CR-002307-22BX wherein he was charged with Criminal Sale of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Third Degree and Criminal Possession of a Controlled Substance in the Seventh Degree.

22. That at the arraignment, Plaintiff was released and ordered to return to court.

23. That on and between February 12, 2022 and August 15, 2022, Plaintiff made numerous court appearances until the case against Plaintiff was dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

24. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 23, as if more fully stated herein at length.

25. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

26. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

27. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

28. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

29. That as a result of the Defendants' actions, Plaintiff missed several days from work.

30. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

33. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton

indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

38. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

39. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, AGOSTO, RIVERA, UC DOE and DOES persisted in their false claim that Plaintiff acted in concert to sell a narcotic substance.

40. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, AGOSTO, RIVERA, UC DOE and DOES persisted in their false claim that Plaintiff possessed a narcotic substance.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. At all times pertinent hereto, AGOSTO, RIVERA, UC DOE and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

43. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that AGOSTO, RIVERA, UC DOE and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. The City of New York and New York City Police Department's failure to provide adequate training and supervision to AGOSTO, RIVERA, UC DOE and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

46. That the City of New York and New York City Police Department were aware that AGOSTO was the subject of five (5) Civilian Complaint Review Board complaints and despite such, they continued to employ AGOSTO.

47. That the City of New York and New York City Police Department were aware that AGOSTO was the subject of a civil rights lawsuit, index number 20CV03109, G., K. an Infant By Ng Doyley, Phillip, et al. vs City of New York, et al., United States District Court, Eastern District and despite such, they continued to employ AGOSTO.

48. That the City of New York and New York City Police Department were aware that AGOSTO was the subject of a civil rights lawsuit, index number 17CV03952, Baijnauth, Kevin, et al. vs Detective Allen, Gary, et al., United States District Court, Eastern District and despite such, they continued to employ AGOSTO.

49. That the City of New York and New York City Police Department were aware that RIVERA was the subject eighteen (18) Civilian Complaint Review Board complaints and despite such, they continued to employ RIVERA.

50. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 801989/2022E, Storm Jones v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

51. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 814946/2021E, Cory Tucker v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

52. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 803202/2021E, Cory Tucker v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

53. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 030630/2020E, Marco Vasquez v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

54. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 027178/2020E, Glenford Francis v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

55. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 027740/2019E, Akeem

Alphaneous Farrell v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

56. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 024903/2019E, Leandra Monegro v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

57. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 027628/2019E, Merlin Pichardo v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

58. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 025217/2019E, Mark Boyd v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

59. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 033178/2018E, William Samuel v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

60. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 028983/2018E, Edwin Gonzalez Crespo v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

61. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 027480/2017E, Luis Semiday v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

62. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 300183/2017, Tarelle Rowell v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

63. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 251498/2016, Charles Rochester v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

64. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 023414/2016E, Ronald Pena v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

65. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 15CV09815, Dahiana Capellan v. Michael Smyth et al, United States District Court, Southern District and despite such, they continued to employ RIVERA.

66. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 301140/2015, Rodney Cook v.

City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

67. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 14CV00184, Dale Robertson v. City of New York et al, United States District Court, Southern District and despite such, they continued to employ RIVERA.

68. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 14CV08377, Douglas v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

69. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 301130/2014, Alvin Williams v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

70. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 13CV06664, Thomas Edwards v. City of New York et al, United States District Court, Southern District and despite such, they continued to employ RIVERA.

71. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 302144/2013, David Anthony v. City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

72. That the City of New York and New York City Police Department were aware that RIVERA was the subject of a civil rights lawsuit, index number 13CV06312, Shawn Lewis v.

City of New York et al, Bronx Supreme Court and despite such, they continued to employ RIVERA.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

73. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 72 as if more fully stated herein at length.

74. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

75. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
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New York, NY 10021
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STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: May 9, 2023

Jason Steinberger
Jason A. Steinberger